

ELIZABETH II



1986 CHAPTER xiii

An Act to authorise the South Yorkshire Passenger Transport Executive to operate trolley vehicles; and for other purposes. [8th July 1986]

WHEREAS—

(1) Under the Transport Acts 1968 and 1985 it is the general duty of the South Yorkshire Passenger Transport Executive (hereinafter referred to as “the Executive”) to secure the provision of passenger transport services for meeting public passenger transport requirements of their area:

(2) It is expedient that the Executive should be authorised to operate trolley vehicles as defined in this Act on routes within their area:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of section 10 (1) (xxix) of the said Act of 1968 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Citation. 1. This Act may be cited as the South Yorkshire Passenger Transport Act 1986.

Interpretation. 2.—(1) In this Act, unless the context otherwise requires—
1950 c. 39. “the Act of 1950” means the Public Utilities Street Works Act 1950;

1972 c. 20. “dual-powered vehicle” means a vehicle which, but for its additional capability of being moved in the course of its normal operation by a source of power on board the vehicle, is a trolley vehicle as defined in section 196(1) of the Road Traffic Act 1972;

“the Executive” means the South Yorkshire Passenger Transport Executive;

“road” has the meaning given by section 196 (1) of the Road Traffic Act 1972;

1984 c. 27. “traffic sign” has the meaning given by section 64 of the Road Traffic Regulation Act 1984;

“trolley vehicle” means a trolley vehicle as defined in section 196 (1) of the Road Traffic Act 1972 and includes a dual-powered vehicle.

(2) Unless the context otherwise requires, reference in this Act to the operating of trolley vehicles includes reference to the heating and lighting of such vehicles.

(3) The provisions of this Act have effect without prejudice to the powers of the Executive with respect to—

(a) the operation on roads or other land of public service vehicles, including trolley vehicles when propelled otherwise than by energy transmitted from an external source; and

(b) the operation of trolley vehicles, however propelled, upon land in which the Executive have sufficient right apart from this Act.

Application of Road Traffic Act 1972. 3.—(1) Except as provided in subsections (2) and (3) below, the provisions of the Road Traffic Act 1972 which, by virtue of section 198 of that Act, do not apply to trolley vehicles within the meaning of that Act unless otherwise provided as mentioned in subsection (8) of that section, shall apply to dual powered vehicles operated under this Act.

(2) Section 40 of the said Act of 1972 (which provides for the regulation of the construction, weight, equipment and use of vehicles), and the regulations under that section, shall apply to trolley vehicles operated under this Act subject to any order which may be made by the Secretary of State under section 42 of that Act.

(3) Sections 34 and 195 of the said Act of 1972 (which provide respectively, so far as relevant, for the carrying of a person to attend to a trailer and for the interpretation of statutory references to carriages) and the regulations under the said section 34 shall not apply to dual-powered vehicles operated under this Act.

(4) Notwithstanding anything in the said subsection (8), sections 44 and 52 of the said Act of 1972 (which relate to obligatory test certificates and the grant of excise licences) shall apply to dual-powered vehicles operated under this Act.

4.—(1) The Executive may operate trolley vehicles on routes in their area authorised by or under this Act.

Operation of
trolley
vehicles.

(2) The powers conferred by subsection (1) above include power to operate trolley vehicles for the purposes of testing and demonstrating systems of passenger transport.

5. The Executive are hereby authorised to operate trolley vehicles in any direction in which vehicular traffic is permitted to pass on the following routes, or any part thereof, within the borough of Doncaster:—

Specified
routes in
Doncaster.

Route No. 1 (872 metres in length) from the junction of High Street with Cleveland Street, passing along Cleveland Street, Duke Street, St. Sepulchre Gate and High Street to the point of commencement;

Route No. 2 (3,108 metres in length) from the termination of route No. 1, passing along Silver Street, Market Road, Church Way, The Holmes, The Holmes Market and Beckett Road to the north-eastern end of that road;

Route No. 3A (215 metres in length) from the termination of route No. 1, passing along Hall Gate to the junction of Hall Gate with Prince's Street;

Route No. 3B (422 metres in length) from the termination of route No. 3A, passing along Prince's Street and Thorne Road to the junction of Thorne Road with Broxholme Lane;

Route No. 3C (477 metres in length) from the termination of route No. 3A, passing along Hall Gate and Thorne Road to the said junction of Thorne Road with Broxholme Lane;

Route No. 3D (450 metres in length) from the termination of routes Nos. 3B and 3C, passing along Thorne Road to the junction of Thorne Road with Town Moor Avenue;

Route No. 4 (2,855 metres in length) from the termination of route No. 3D, passing along Thorne Road to the junction of Thorne Road with Leger Way;

Route No. 5 (1,164 metres in length) from the termination of route No. 3D, passing along Town Moor Avenue and Sandringham Road to the junction of Sandringham Road and Leicester Avenue;

Route No. 6 (1,255 metres in length) from the termination of route No. 5, passing along Sandringham Road to the junction of Sandringham Road with Armthorpe Road;

Route No. 7 (1,558 metres in length) from the termination of route No. 5, passing along Leicester Avenue and Shaftesbury Avenue to the north-eastern end of that road;

Route No. 8 (315 metres in length) from the junction of Leicester Avenue with Shaftesbury Avenue, passing along Leicester Avenue and Leger Way to the depot of the Executive off Leger Way.

Specified
routes in
Rotherham.

6. The Executive are hereby authorised to operate trolley vehicles in any direction in which vehicular traffic is permitted to pass on the following routes, or any part thereof, within the borough of Rotherham:—

Route No. 1 (304 metres in length) from the junction of College Street with High Street, passing along College Street, Effingham Street and Howard Street to the junction of Howard Street with Eastwood Lane;

Route No. 2 (1,733 metres in length) from the junction of Market Street with Main Street, passing along Market Street, Corporation Street, Frederick Street, Effingham Square, Drummond Street, Wharncliffe Street, Doncaster Road, Doncaster Gate, High Street, Westgate and Main Street to the point of commencement;

Route No. 2A (58 metres in length) from the junction of Market Place with High Street and Westgate, passing along Market Place to the junction of Market Place with Market Street and Corporation Street;

Route No. 2B (376 metres in length) from the junction of Howard Street with Doncaster Gate, passing along Howard Street, Eastwood Lane and Drummond Street to the junction of Drummond Street with Henry Street;

Route No. 2C (249 metres in length) from the junction of the bus station service road with Effingham Square, passing along the bus station service road through the bus station to the junction of that road with Frederick Street;

Route No. 3 (1,465 metres in length) from the termination of Route No. 2, passing along Main Street, across Centenary Way, thence along Masbrough Street, Coronation Bridge, Kimberworth Road, Devonshire Street and Midland Road to the depot of the Executive off Midland Road;

Route No. 4 (2,975 metres in length) from the junction of Kimberworth Road with Devonshire Street, passing along Kimberworth Road, Church Street, High Street, Old Wortley Road, Wortley Road, Great Park Road and Kimberworth Park Road to the Kimberworth Park bus turning circle;

Route No. 5 (1,290 metres in length) from the junction of Meadowhall Road and Church Street, passing along Meadowhall Road, Richmond Park Avenue, Hill Top Lane and Sopewell Road to the bus turning circle;

Route No. 6 (5,052 metres in length) from the junction of Centenary Way with Effingham Square, passing along both slip roads of Centenary Way, Centenary Way, Fitzwilliam Road, Doncaster Road, Oldgate Lane, Park Lane, Vale Road and Link Road to the bus turning circle;

Route No. 6A (890 metres in length) from the junction of Mowbray Street with Fitzwilliam Road, passing along Mowbray Street, the bus link road and Herringthorpe Valley Road, to the junction of that road with Fitzwilliam Road and Doncaster Road;

Route No. 7 (1,240 metres in length) from the junction of Vale Road with Link Road, passing along Vale Road and Hollings Lane to the Silverwood Colliery;

Route No. 8 (11,179 metres in length) from the junction of Wellgate with Doncaster Gate, passing along Wellgate, Broom Road, Wickersley Road, East Bawtry Road, Bawtry Road, Rotherham Road and High Street to the junction of High Street with Grange Lane and Muglet Lane;

Route No. 8A (2,424 metres in length) from the termination of Route No. 8, passing along Muglet Lane, Lansbury Avenue, Outgang Lane, Muglet Lane, Blyth Road, Queen Avenue, Firth Crescent, Duke Avenue and Muglet Lane to the junction of Muglet Lane with Lansbury Avenue;

Route No. 8B (3,471 metres in length) from the termination of Route No. 8, passing along Grange Lane, Salisbury Road, Bridge Lane, Dale Hill Road and Addison Road to the junction of Addison Road with Rotherham Road;

Route No. 8C (420 metres in length) from the junction of Cliff Hill with Rotherham Road, passing along Cliff Hill and Laburnum Road to the junction of Laburnum Road and Addison Road;

Route No. 8D (150 metres in length) from the junction of Muglet Lane with Duke Avenue, passing along Muglet Lane to the junction of Muglet Lane with Outgang Lane.

Authorisation
of other
routes.

7.—(1) The relevant authority may, by order made on the proposal of the Executive under this section, authorise the operation of trolley vehicles on any road within their area specified in the order.

(2) Before making an order under this section authorising the operation of trolley vehicles on any road the relevant authority shall—

- (a) consult with the district council in whose area the road is situated;
- (b) consult with the traffic commissioner for the traffic area in which the road is situated;
- (c) consult with the chief officer of police of the police area in which the road is situated; and
- (d) consult with the highway authority for that road (if different) or, in the case of a private street, the street managers within the meaning given by section 2 of the Act of 1950.

(3) After the consultations required by subsection (2) above but before making the order, the relevant authority shall—

(a) publish, once at least in a local newspaper circulating in the area in which any road to which the intended order relates is situated, notice of the proposal stating—

(i) the general effect of the order specifying all such roads and the approximate length of each such road comprising or forming part of an intended route or otherwise affected;

(ii) an address at which a copy of the intended order can be inspected and the times for such inspection;

(iii) that any person may within 28 days after the first publication of the notice, by notice in writing to the relevant authority specifying the grounds of objection, object to the intended order;

(b) display a copy of the notice in a prominent position at or near each end of the length of each road affected and maintain the notice so displayed until the end of the said period of 28 days; and

(c) serve a copy of the notice on each of the persons mentioned in subsection (2) above and upon the British Gas Corporation and the water authority for the area.

(4) If, before the end of the said period of 28 days, notice in writing of an objection, specifying the grounds of objection, is received by the relevant authority from any person appearing to them to be affected by the intended order and the objection is not withdrawn, the relevant authority shall, before making the order, cause a public inquiry to be held and consider the report and recommendations (if any) of the person appointed to hold it.

(5) Where such a public inquiry is held upon objections to any intended order—

(a) the relevant authority shall appoint, as the person to hold the inquiry, a person selected by them after consultation with the Secretary of State;

(b) not less than 42 days before the date of the inquiry the relevant authority shall publish, once at least in a local newspaper circulating in the area in which any road to which the intended order relates is situated, a notice of the inquiry stating—

(i) the general effect of the order specifying all such roads and the approximate length of so much of each such road as is affected;

- (ii) the date, time and place of the inquiry, the name of the person appointed to hold it and an address to which written representations for his consideration may be submitted; and
 - (iii) an address at which a copy of the intended order can be inspected and the times for such inspection;
 - (c) not later than the date of the first publication of the notice required by paragraph (b) above, inform in writing any person who has duly objected to the order, and not withdrawn the objection, of the date, time and place of the inquiry;
 - (d) any person interested in the subject matter may appear at the inquiry either in person or by counsel, solicitor or other representative and may, whether or not he intends to appear at the inquiry, send to the person appointed to hold the inquiry, at the address stated in the notice of the inquiry, such written representations as he may wish to make in relation to the subject matter of the inquiry for consideration by that person at the inquiry;
 - (e) the person holding the inquiry may refuse to hear any person, or to consider any objection or representation made by any person, if he is satisfied that the views of that person, or expressed in the objection or representation, are frivolous or that such views have already been adequately stated by some other person at the inquiry;
 - (f) subject as aforesaid, the procedure at the inquiry shall be in the discretion of the person holding it.
- (6) Where the relevant authority decide to make an order under this section they shall—
- (a) give notice of their decision to each of the persons mentioned in subsection (2) above and to each person who duly objected to the order and did not withdraw his objection;
 - (b) make available at the offices of the relevant authority during normal office hours and, if the relevant authority think fit, at such other places within their area and during such times respectively at those places as the relevant authority may determine, copies of the order as made and a statement of the authority's reasons for making the order; and
 - (c) publish, once at least in a local newspaper circulating in the area to which the order relates, notice of the making of the order.

(7) (a) If any person desires to question the validity of an order under this section on the grounds that it is not within the powers conferred by this Act, or that any requirement of this Act with respect to the making of the order has not been complied with, he may, within 42 days after the date on which notice of the making of the order is first published under subsection (6) above, make an application for the purpose to the High Court.

(b) On any application under paragraph (a) above, the High Court—

- (i) may, by interim order, suspend the operation of the order until the final determination of the proceedings; and
- (ii) if satisfied that the order is not within the powers conferred by this Act, or that the interests of the applicant have been substantially prejudiced by failure to comply with any requirement of this Act with respect to the making of the order, quash the order either generally or so far as may be necessary for the protection of the interests of the applicant.

(8) In this section “relevant authority” in relation to any road means the local highway authority for the area in which the road is situated.

8.—(1) The Executive may—

(a) in, on, under or over any road in their area comprised in, or adjacent to, any trolley vehicle route authorised by or under this Act, or in which it may be necessary or convenient for the connection of apparatus with any electricity generating station or substation;

(b) subject as provided in subsection (3) below, with the consent of the owners and occupiers of any other land in their area, in, on, under or over that land; and

(c) in, on, under or over any land in which the Executive otherwise have sufficient right;

lay, place, erect, maintain and renew posts, standards, brackets, cables, wires and other apparatus required for the purpose of operating trolley vehicles and, with the consent of the owner of any such existing apparatus, adapt, use and maintain that apparatus for that purpose.

(2) The provisions of Part VI of Schedule 3 to the Water Act 1945 (breaking open streets) shall apply to trolley vehicle apparatus referred to in subsection (1) above as they apply to water mains and pipes as if—

Trolley vehicle installations.

1945 c. 42.

(a) for any reference to undertakers or limits of supply there were substituted respectively reference to the Executive and their area; and

- (b) in section 22 of that schedule the words "which they are authorised to lay" and section 25 (4) of that schedule were omitted;

and for that purpose the provisions of the Act of 1950 shall have effect as if, notwithstanding the exception in subsection (1) of section 1 of that Act of a power conferred for the purposes of a trolley vehicle system undertaking, the power of the Executive under this Act to install trolley vehicle apparatus were a power to which the said section 1 applies:

Provided that no posts, standards or other apparatus shall be erected in or on the carriageway of any road which is a highway maintainable at the public expense except after consultation with the highway authority for that road and the chief officer of police for the police area in which the road is situated.

1961 c. 64.

(3) The Executive may affix any brackets, cables, wires and other similar apparatus referred to in subsection (1) above to any building or structure in, or fronting on, or constructed over, any road in their area; and for that purpose the provisions of subsections (2), (4) to (6), (8) and (9) of section 45 of the Public Health Act 1961 (affixing apparatus to buildings for street lighting) shall apply and have effect as if—

- (a) the attachments therein mentioned included any such trolley vehicle apparatus; and
(b) for the references to the street lighting authority there were substituted references to the Executive.

(4) A trolley vehicle route shall not be opened for the conveyance of the public on trolley vehicles when propelled by energy transmitted from an external source until the route has been certified to be fit for such traffic by the Secretary of State.

(5) Without prejudice to the generality of subsection (4) above, traction cables forming part of the overhead line equipment of a trolley vehicle route shall be erected at a height agreed in writing by the Secretary of State and, if at any place a height less than 18 feet 6 inches (5.63 metres) above the surface of the ground is so agreed, the Executive shall erect such traffic signs as may be directed by the Secretary of State to give warning of such cables.

(6) Before laying, placing or erecting posts, standards, brackets, cables, wires and other apparatus in any district for the purposes of any trolley vehicle route authorised by or under this Act, the Executive shall consult with—

- (a) the local planning authority; and
(b) the British Gas Corporation and the Yorkshire Water Authority or, if the route is in the area of the Severn-Trent Water Authority, that authority instead of the Yorkshire Water Authority.

9.—(1) The following provisions of the Tramways Act 1870 shall apply to trolley vehicle routes authorised by or under this Act as if apparatus provided for the operation of trolley vehicles on such routes were tramways, the expression “road” had the same meaning as in this Act and the expression “the promoters” meant the Executive:—

Sections 49
and 57 of
Tramways Act
1870.
1870 c. 78.

Section 49 (obstruction of promoters in laying out tramway);

Section 57 (right of user only).

(2) The said section 49 as applied by this section shall have effect as if, for the words “a penalty not exceeding £25”, there were substituted the words “a fine not exceeding level 3 on the standard scale”.

10. The Executive shall have the exclusive right of using any apparatus installed by them for operating trolley vehicles and, subject to any arrangements made between the Executive and any local authority in whose area it is situated for the use of any such apparatus for any of their functions, any person using any such apparatus without the consent of the Executive or other reasonable excuse shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

Exclusive right
of using trolley
vehicle
apparatus.

11. The following provisions shall apply to the use of electrical energy transmitted to trolley vehicles for their operation under this Act:—

Provisions as
to use of
electrical
energy.

(a) The Executive shall employ either insulated returns or uninsulated metallic returns of low resistance;

(b) The Executive shall take all reasonable precautions in constructing, placing and maintaining their electric lines and circuits and other works of all descriptions, and in working their trolley vehicle system, so as not injuriously to affect by fusion or electrolytic action any electric lines or gas or water pipes, or other metallic pipes, structures or substances, or to interfere with, or with the working of—

(i) any wire, line or apparatus from time to time used for the purpose of transmitting electrical energy or of telecommunications or other means of signalling; or

(ii) the currents in any such wire, line or apparatus;

(c) The Secretary of State may make regulations under this section for regulating the use of electrical energy for the operation of trolley vehicles under this Act, including regulations for preventing fusion and

injurious electrolytic action of or on electric lines or gas or water pipes, or other metallic pipes, structures or substances, and for minimising, so far as is reasonably practicable, injurious interference with, and with the working of, the electric wires, lines and apparatus of other persons, and the currents therein, whether such lines do, or do not, use the earth as a return;

- (d) The Executive shall be deemed to take all reasonable and proper precautions against interference with, or with the working of, any wire, line or apparatus or the currents therein if and so long as they adopt and employ, at the option of the Executive, either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with, and with the working of the electric wires, lines and apparatus of other persons, and the currents therein, as may be prescribed by the said regulations; and in prescribing such means the Secretary of State shall have regard to the expense involved in relation to the protection afforded;
- (e) The provisions of this section shall not operate to give any right of action in respect of injurious interference with, or with the working of, any electric wire, line or apparatus, or the currents therein, unless in the construction, erection, maintaining and working of such wire, line and apparatus all reasonable and proper precautions, including the use of an insulated return, have been taken to minimise injurious interference therewith, and with the currents therein, by or from other electric currents;
- (f) If any difference arises between the Executive and any other person with respect to anything in the foregoing provisions of this section, the difference shall, unless the parties otherwise agree, be determined by the Secretary of State or, at his option, by an arbitrator to be appointed by him, and the costs of such determination shall be in the discretion of the Secretary of State or, as the case may be, the arbitrator;
- (g) The power to make regulations conferred on the Secretary of State by this section shall be exercisable by statutory instrument;
- (h) In this section reference to an insulated return includes reference to a return by means of a combined neutral and earth cable which is covered by a sheath suitable for protection against corrosion and is approved for use below ground by the Secretary of State for the

purpose of any regulations relating to the supply of electricity.

12. For the protection of the British Railways Board the following provisions shall, unless otherwise agreed in writing between the Executive and the railways board, apply and have effect:—

For protection
of British
Railways
Board.

(1) In this section—

“the railways board” means the British Railways Board;

“the relevant operation” means the carrying out under section 8 (Trolley vehicle installations) of this Act of any undertakers’ works within the meaning given by section 1 (2) of the Act of 1950 by which apparatus required for the operation of trolley vehicles is placed on or in, or attached to, a bridge over or under a railway of the railways board:

(2) Nothing in this Act shall authorise the Executive without the consent of the railways board to place or erect above ground at any place at which a road crosses on the level, or is so crossed by, a railway of the railways board apparatus for the operation of trolley vehicles:

(3) In respect of any relevant operation the following provisions of the Act of 1950 shall, as between the Executive and the railways board, have effect subject to the following modifications:—

(a) the relevant operation shall be works to which section 3 applies;

(b) in sections 4 (2) (a) and 10 (1), for the period of 29 days there shall be substituted the period of 56 days;

(c) in section 6 (1) (a), for the period of 7 days there shall be substituted the period of 28 days, and in section 6 (3) for the period of two months there shall be substituted the period of 8 months:

(4) Notwithstanding the provisions of section 10 of the Act of 1950 any relevant operation shall be works in respect of which the railways board shall have the right to elect themselves to execute the same whether or not the works involve breaking up or opening the street in question or tunnelling or boring under it:

(5) Without prejudice to the provisions of section 45 of the Public Health Act 1961 applied by section 8 (3) of this Act, in any case where the railways board shall require to widen, lengthen, strengthen, re-construct, alter, maintain, repair or paint any bridge under which

1961 c. 64.

trolley vehicle wires of the Executive are suspended or to which such wires are attached, the Executive shall, upon being given not less than 14 days' notice to that effect (except in case of emergency), cut off the electric current from those wires at such times and for such periods as the railways board may reasonably require for the purpose of carrying out those works having regard to the need for the operation of the trolley vehicle system for public transport:

- (6) Nothing in section 8 of this Act shall authorise the operation of trolley vehicles on any road belonging to or maintainable by the railways board without the consent of the railways board, which consent shall not be unreasonably withheld:
- (7) Any question whether any requirement is reasonably made under paragraph (5) above or any consent is unreasonably withheld under paragraph (6) above shall be determined by a single arbitrator to be agreed between the parties or, failing agreement, appointed on the application of either of them (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Leases and agreements for provision of trolley vehicles.

13.—(1) The Executive may, with the approval of the Secretary of State, lease to any person the right to use or operate trolley vehicles under this Act.

(2) The exercise of the powers of any enactment in pursuance of any lease under this section shall be subject to the like provisions in relation thereto as would apply if those powers were exercised by the Executive.

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CHAPTER xiii

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